Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 465

RESOLUTION URGING THE BANGSAMORO GOVERNMENT THROUGH THE MINISTRY OF TRANSPORTATION AND COMMUNICATIONS, MINISTRY OF TRADE, INVESTMENTS AND TOURISM, AND THE BANGSAMORO BOARD OF INVESTMENTS TO PROMOTE, ENCOURAGE, AND INCENTIVIZE INVESTMENTS IN THE MARITIME TRANSPORTATION AND LOGISTICS OF THE BANGSAMORO AUTONOMOUS REGION ESPECIALLY IN THE ISLAND PROVINCES OF THE REGION

WHEREAS, Section 5, Article II of the 1987 Philippine Constitution categorically states that the protection of life, liberty, and property, along with the promotion of the general welfare, are essential for all people to enjoy the blessings of a democracy;

WHEREAS, Section 20, Article II of the 1987 Philippine Constitution states that the government recognizes the indispensable role of the private sector, encourages private enterprise, and provides incentives for necessary investments;

WHEREAS, Section 38, Article XIII of Republic Act No. 11054, also known as the *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, states that the Bangsamoro Government has the authority to grant regional franchises, licenses, and permits for land, sea, and air transportation within the provinces or cities of the Bangsamoro Autonomous Region. However, it specifies that the National Government will regulate the airside operations of all existing airports;

WHEREAS, Section 4, Chapter II of Republic Act No. 9295 or the *"Domestic Shipping Development Act of 2004"* enumerates investment incentives which shall be granted to qualified domestic ship operators to insure the continued viability of domestic shipping, and to encourage investments in the domestic shipping industry;

WHEREAS, Section 8, Chapter II of R.A. No. 9295 states that to encourage investments in the domestic shipping industry from both existing and new operators and investors, domestic ship operators are authorized to establish their own domestic shipping rates, provided that effective competition is fostered and public interest is served;

WHEREAS, the Ministry of Transportation and Communications (MOTC) is mandated to be the primary entity responsible for policy-making, planning, programming, coordinating, implementing, regulating, and administering dependable and coordinated networks of transportation and communications systems, ensuring fast, safe, efficient, and reliable transportation and communication services in the Bangsamoro Government;

WHEREAS, the Ministry of Trade, Investments and Tourism (MTIT) is the primary government agency mandated to implement laws, programs, and projects on trade, investments, and tourism in the Bangsamoro;

WHEREAS, MTIT aims to promote and facilitate the increase of investments in trade, industries, and tourism in the region;

WHEREAS, the Bangsamoro Board of Investments (BBOI) is the body which generates, approves, and promotes investments coming in the region and the incentive giving body that approves the incentives of huge entrepreneurs in the Bangsamoro Autonomous Region;

WHEREAS, sea transport, defined as the movement of goods or people over large bodies of water, has become the most common method for sending cargo or shipments across vast distances;

WHEREAS, the critical role of maritime transport in ensuring an integrated and coordinated transport network is foundational for an archipelagic country like the Philippines;

WHEREAS, the Philippines relies on the maritime industry as a vital component in attaining inclusive growth and socio-economic progress;

WHEREAS, shipping remains the major infrastructure by which islands are linked;

WHEREAS, ensuring the safety and efficiency of our transportation sector is crucial for our citizens who rely on it daily, given that the country is an archipelago;

WHEREAS, to encourage and promote investments from private sectors to the maritime transport of the Bangsamoro Autonomous Region, the Bangsamoro Government through MOTC, MTIT, and BBOI, should come up with an incentive and coordinated program which will attract other shipping lines to operate in the ports of the region and serve the Bangsamoro people:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To urge the Bangsamoro Government through the Ministry of Transportation and Communications, Ministry of Trade, Investments and Tourism, and the Bangsamoro Board of Investments to promote, encourage, and incentivize investments in the maritime transportation and logistics of the Bangsamoro Autonomous Region especially in the island provinces of the region.

RESOLVED, FURTHER, To furnish a copy of this Resolution to the MOTC, MTIT, and BBOI, for information and appropriate action.

ADOPTED, *Dhu Al-Hijjah* 13, 1445/June 19, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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